

COMMITTEE ON REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY
SENATE AMENDMENTS TO S.B. 1205
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. Motor vehicle booting; regulation; notice;
5 restrictions; fees; violation; classification;
6 definitions

7 A. A CITY OR TOWN MAY NOT ADOPT ANY LAW, ORDINANCE OR OTHER
8 REGULATION THAT PROHIBITS BOOTING A MOTOR VEHICLE THAT IS LOCATED ON
9 PRIVATE PROPERTY WITHOUT THE PERMISSION OF THE OWNER OR OPERATOR OF THE
10 MOTOR VEHICLE.

11 B. A CITY OR TOWN MAY ADOPT A LAW, ORDINANCE OR OTHER REGULATION
12 THAT REGULATES THE RATES THAT A MOTOR VEHICLE BOOTING SERVICE MAY CHARGE
13 THAT ARE CONSISTENT WITH SUBSECTION F OF THIS SECTION. THE CITY OR TOWN
14 MAY ADOPT SIGNAGE REQUIREMENTS AND BOOTED MOTOR VEHICLE RELEASE PRACTICES
15 THAT ARE CONSISTENT WITH SUBSECTIONS C AND E OF THIS SECTION IF THE MOTOR
16 VEHICLE THAT IS SUBJECT TO BOOTING IS LOCATED ON PRIVATE PROPERTY WITHIN
17 THE BOUNDARIES OF THE CITY OR TOWN.

18 C. THE OWNER OR AGENT OF THE OWNER OF THE PRIVATE PROPERTY IS
19 DEEMED TO HAVE GIVEN CONSENT TO UNRESTRICTED PARKING BY THE GENERAL PUBLIC
20 IN ANY PARKING AREA OF THE PRIVATE PROPERTY UNLESS THE PARKING AREA IS
21 POSTED WITH SIGNS AS PRESCRIBED BY THIS SUBSECTION THAT ARE CLEARLY
22 VISIBLE AND READABLE FROM ANY POINT WITHIN THE PARKING AREA AND AT EACH
23 ENTRANCE. THE SIGN MUST CONTAIN, AT A MINIMUM, THE FOLLOWING:

24 1. RESTRICTIONS ON PARKING.

25 2. DISPOSITION OF MOTOR VEHICLES FOUND IN VIOLATION OF THE PARKING
26 RESTRICTIONS.

27 3. THE MAXIMUM COST TO THE OWNER OR OPERATOR OF THE MOTOR VEHICLE
28 FOR REMOVAL OF THE BOOTING DEVICE.

1 4. A TELEPHONE NUMBER AND ADDRESS FOR THE VEHICLE BOOTING SERVICE
2 FOR ASSISTANCE WITH BOOT REMOVAL.

3 D. A MOTOR VEHICLE BOOTING SERVICE MAY BOOT A MOTOR VEHICLE ON
4 PRIVATE PROPERTY IF BOTH OF THE FOLLOWING APPLY:

5 1. THE MOTOR VEHICLE BOOTING SERVICE RECEIVES A REQUEST FROM A LAW
6 ENFORCEMENT AGENCY OR HAS OBTAINED THE WRITTEN PERMISSION FROM THE OWNER
7 OR THE AGENT OF THE OWNER OF THE PRIVATE PROPERTY THAT COMPLIES WITH
8 SUBSECTION C OF THIS SECTION.

9 2. THE MOTOR VEHICLE BOOTING SERVICE DOES NOT ACT AS THE AGENT OF
10 THE OWNER OF THE PRIVATE PROPERTY EXCEPT TO THE EXTENT REQUIRED TO COLLECT
11 UNPAID PARKING FEES.

12 E. A MOTOR VEHICLE BOOTING SERVICE SHALL RELEASE A BOOTED MOTOR
13 VEHICLE WITHIN THIRTY MINUTES AFTER RECEIVING A REQUEST FOR THE MOTOR
14 VEHICLE'S RELEASE. A MOTOR VEHICLE BOOTING SERVICE SHALL HAVE THE ABILITY
15 TO RELEASE A BOOTED MOTOR VEHICLE TWENTY-FOUR HOURS A DAY, SEVEN DAYS A
16 WEEK. ALL CHARGES FOR THE BOOTING OF THE MOTOR VEHICLE AND ALL UNPAID
17 PARKING FEES MUST BE PAID BEFORE THE RELEASE OF THE BOOTED MOTOR VEHICLE.

18 F. A MOTOR VEHICLE BOOTING SERVICE MAY CHARGE AT LEAST \$90 BUT NOT
19 MORE THAN \$150 FOR BOOTING A MOTOR VEHICLE. THE STATUTORY MOTOR VEHICLE
20 BOOTING SERVICE FEES FOR BOOTING A MOTOR VEHICLE MUST AUTOMATICALLY BE
21 ADJUSTED EVERY THREE YEARS BASED ON THE CONSUMER PRICE INDEX AS PUBLISHED
22 BY THE UNITED STATES DEPARTMENT OF LABOR, BUREAU OF LABOR STATISTICS. A
23 MOTOR VEHICLE BOOTING SERVICE MAY NOT CHARGE AN ADDITIONAL FEE FOR THE USE
24 OF A CREDIT CARD TO PAY BOOTING FEES AND UNPAID PARKING FEES. IF A MOTOR
25 VEHICLE BOOTING SERVICE RELEASES A BOOTED MOTOR VEHICLE AFTER THIRTY
26 MINUTES BUT BEFORE SIXTY MINUTES OF RECEIVING A REQUEST TO RELEASE THE
27 MOTOR VEHICLE, THE MOTOR VEHICLE BOOTING SERVICE SHALL REDUCE THE MOTOR
28 VEHICLE BOOTING FEE BY FIFTY PERCENT. IF A MOTOR VEHICLE BOOTING SERVICE
29 RELEASES A BOOTED VEHICLE AFTER SIXTY MINUTES OF RECEIVING A REQUEST TO
30 RELEASE THE MOTOR VEHICLE, THE MOTOR VEHICLE BOOTING SERVICE MAY NOT
31 CHARGE A FEE FOR THE RELEASE OF THE MOTOR VEHICLE. A MOTOR VEHICLE
32 BOOTING SERVICE MAY CHARGE ONLY ONE FEE FOR BOOTING A COMBINATION OF MOTOR
33 VEHICLES. A MOTOR VEHICLE BOOTING SERVICE MAY CHARGE AN ADDITIONAL FEE
34 FOR BOOTING A TRAILER OR OTHER VEHICLE THAT IS SEPARATED FROM THE MOTOR
35 VEHICLE THAT IS THE ~~[TRAILER]~~ [TRAILER'S] OR OTHER VEHICLE'S METHOD OF
36 TRANSPORTATION. A MOTOR VEHICLE THAT HAS BEEN BOOTED WITH A BOOTING
37 DEVICE THAT CAN BE REMOVED BY THE OWNER OR OPERATOR OF THE MOTOR VEHICLE
38 ON THE PAYMENT OF BOOTING FEES AND UNPAID PARKING FEES WILL BE DEEMED
39 RELEASED TO THE MOTOR VEHICLE'S OWNER OR OPERATOR ONCE THE MOTOR VEHICLE'S
40 OWNER OR OPERATOR HAS BEEN PROVIDED THE ABILITY TO REMOVE THE BOOTING
41 DEVICE.

42 G. IF THE OWNER OR OPERATOR OF A MOTOR VEHICLE INTENTIONALLY
43 DAMAGES A BOOTING DEVICE OR DOES NOT RETURN A BOOTING DEVICE TO THE MOTOR
44 VEHICLE BOOTING SERVICE OR TO A CLEARLY DESIGNATED AREA ON-SITE AT THE
45 MOTOR VEHICLE BOOTING SERVICE STORAGE AREA, THE MOTOR VEHICLE'S OWNER OR
46 OPERATOR MAY BE SUBJECT TO AN ADDITIONAL FEE OF NOT MORE THAN \$250.

1 H. A MOTOR VEHICLE BOOTING SERVICE MAY NOT BOOT ANY OF THE
2 FOLLOWING:

3 1. A MOTOR VEHICLE THAT IS DISPLAYING A TAX-EXEMPT LICENSE PLATE.

4 2. A MARKED EMERGENCY MOTOR VEHICLE.

5 3. A MOTOR VEHICLE WITH AN OCCUPANT.

6 4. A MOTOR VEHICLE THAT REMAINS PARKED FOR LESS THAN FIFTEEN
7 MINUTES AFTER THE PAID PARKING PERIOD THAT IS APPLICABLE TO THAT MOTOR
8 VEHICLE EXPIRES.

9 I. A MOTOR VEHICLE BOOTING SERVICE SHALL MAINTAIN A TIME-STAMP
10 METHOD OF RECORDING CALLS THAT REQUEST THE RELEASE OF A BOOTED MOTOR
11 VEHICLE. THE MOTOR VEHICLE BOOTING SERVICE SHALL MAINTAIN THE CALL
12 RECORDS FOR A MINIMUM OF NINETY DAYS. THE MOTOR VEHICLE BOOTING SERVICE
13 SHALL MAKE AVAILABLE TO THE CITY OR TOWN AT NO CHARGE THE RECORDING OF A
14 CALL WITHIN FIVE DAYS AFTER RECEIVING A REQUEST FROM THE CITY OR TOWN.

15 J. A PERSON THAT VIOLATES SUBSECTION D, E, F, G OR H OF THIS
16 SECTION IS GUILTY OF A CLASS 2 MISDEMEANOR.

17 K. THIS SECTION APPLIES ONLY TO SERVICES PERFORMED WHILE A PERSON
18 IS ENGAGED IN THE ACTIVITIES OF A MOTOR VEHICLE BOOTING SERVICE.

19 L. THIS SECTION DOES NOT APPLY TO ABANDONED OR JUNK VEHICLES
20 DISPOSED OF PURSUANT TO TITLE 28, CHAPTER 11.

21 M. FOR THE PURPOSES OF THIS SECTION:

22 1. "BOOT" OR "BOOTING" MEANS TO IMMOBILIZE A MOTOR VEHICLE BY THE
23 USE OF A MECHANICAL DEVICE THAT IS ATTACHED TO THE TIRE OR WHEEL OR OTHER
24 PART OF THE MOTOR VEHICLE.

25 2. "MOTOR VEHICLE BOOTING SERVICE" MEANS ANY PERSON THAT
26 COMMERCIALY OFFERS BOOT OR BOOTING SERVICES OF A MOTOR VEHICLE THAT IS
27 LOCATED ON PRIVATE PROPERTY WITHOUT THE PERMISSION OF THE OWNER OR
28 OPERATOR OF THE MOTOR VEHICLE.

29 Enroll and engross to conform

30 Amend title to conform

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